ILLINOIS DEPARTMENT OF LABOR

Print Form

Fair Labor Standards Division
115 S. LaSalle St. 37th Floor
Chicago, Illinois 60603
Telephone: 312-793-2800 http://labor.illinois.gov

INSTRUCTIONS FOR WAGE CLAIM & MINIMUM WAGE COMPLAINT FORM

WAGE CLAIM:

For unpaid wages, vacation pay, bonus, commissions or if you believe your employer has made illegal deductions from your pay, proceed to complete both the General Information AND Section 1 of this form only.
You may submit the form by email to **DOL.WAGES@illinois.gov**

MINIMUM WAGE/OVER TIME:

The minimum wage for hourly and non-exempt workers in the state of Illinois is $15.00. Overtime is all time worked over 40 hours in a scheduled workweek for hourly and nonexempt workers. For minimum wage and/or overtime claims, proceed to complete both General Information AND Section 2 of this form only.
You may submit the form by email to **DOL.MWOT@illinois.gov**

If you are filing a wage claim AND a minimum wage/overtime claim, please complete both Sections 1 and 2.

To be able to proceed with your WAGE CLAIM, please follow these steps to complete your application:



Please be aware that the complaint must be filed within one (1) year after wages, final compensation, or wage supplements were due.

- Print your answers clearly and complete the form where applicable.
- Sign and date the application.
- Make at least three (3) copies of the claim application and ALL THE ATTACHMENTS.
  - Provide one (1) signed copy of the claim application WITH ALL THE ATTACHMENTS to the Illinois Department of Labor.
  - **Please keep one signed copy for your records and keep at least one signed copy for serving documents to the employer.** Be advised that any document that a party intends to introduce as evidence during an investigation by the Department should be served by the party on the other party. You may use the "Certificate of Service" found at https://labor.illinois.gov/content/dam/soi/en/web/idol/certificate-of-service.pdf at a Department of Labor hearing as (rebuttable) evidence that you had delivered documents to the other party. IDOL will not provide copies of any of your documents (other than the Wage Claim application) to any party.
- Provide the **correct name and address** of your employer. If the employer is a corporation or Limited Liability Corporation (LLC), you can search the Secretary of State website to verify the employer's address at http://www.ilsos.gov/corporatellc/. This is a public site for locating companies in Illinois. If you do not have access to Internet, you can visit your local public library.
- You must provide an address where both the Department and opposing party (Employer) may serve you documents. It does not need to be your home address but should be an address to where legal documents may be sent and an address that you will check regularly.
- If you wish to expedite the process, the Department suggests that you provide an email address where documents can be served to you by the Department as well as the opposing party.
- If applicable, provide the name, address, and phone number of the attorney or community representative that helped you complete the form.
- You must update the Department in writing immediately if you have a change of address, phone number or email. If the Department recovers money on your behalf, we need your current address in order to send you your check.
- **Do not submit any personal information, such as Social Security numbers, driver license numbers and bank or medical information. Redact or block out this information from the documents you submit.**

Printed by the authority of the State of Illinois **(revised 11/7/25)**

- If you believe you are owed **wages**:
  - Attach one (1) copy of paychecks, paycheck stubs, W2's, 1099's or any other documentation, such as emails or letters, that is relevant to your claim. **DO NOT SUBMIT ORIGINALS.**
- If you believe you are owed **vacation pay**:
  - Attach one (1) copy of the vacation policy or an explanation of the vacation policy, plus W2's, 1099's, paycheck stubs or any other documentation, such as emails or letters, that is relevant to your claim. **DO NOT SUBMIT ORIGINALS.**
- If you believe you are owed a **bonus**:
  - Attach one (1) copy of the bonus agreement or an explanation of the policy plus W2's, 1099's , paycheck stubs or any other documentation, such as emails or letters, that is relevant to your claim. **DO NOT SUBMIT ORIGINALS.**
- If you believe you are owed a **commission payment**:
  - Attach one (1) copy of the commission agreement or an explanation of the policy plus W2's, 1099's, paycheck stubs or any other documentation, such as emails or letters, that is relevant to your claim. **DO NOT SUBMIT ORIGINALS.**
- If you believe your employer has **illegally deducted money from your pay**:
  - Attach one (1) copy of the documentation that shows the deduction (Examples: paycheck stubs or a letter authorizing the deduction) or any other documentation, such as emails or letter, that is relevant to your claim. **DO NOT SUBMIT ORIGINALS.**
- **Submit your completed application and documentation to the Illinois Department of Labor in person, by email at DOL.Wages@illinois.gov or by U.S. mail at 115 S LaSalle Street, 37th Floor, Chicago, IL 60603**

To be able to proceed with your MINIMUM WAGE and/or OVERTIME claim, please follow these steps to complete your application:

- Print or type your answers.
- Sign and date the application.
- Make at least 2 copies of the claim application and ALL THE ATTACHMENTS.
  - Provide one (1) signed copy of the claim application WITH ALL THE ATTACHMENTS to the Department of Labor.
  - **Please keep one (1) copy for your records.**
- Verify that you are providing the **correct name and address** of your employer. You can search the Secretary of State website to verify the employer's address at http://www.ilsos.gov/corporatellc/. This is a public site for locating companies in Illinois. If you do not have access to Internet, you can visit your local public library.
- If applicable, provide the name, address and phone number of the attorney or community representative that helped you complete the form.
- You must update the Illinois Department of Labor in writing immediately if you have a change of address, phone number or email. If the Department recovers money on your behalf we need your current address in order to send you your check.
- **Don't submit any personal information, as Social Security or driver license numbers, medical or bank information. Please block out or redact this information from the documents you submit.**
- If your claim is exclusively for minimum wage and overtime violations, you may choose to remain anonymous by selecting the option on Section 2 of the application. However, your name will be revealed if you also filed a Wage Claim against the employer, or the employer paid you in cash and/or did not keep time records, or if you are no longer working for the employer named in this complaint.
- **Submit your completed application and documentation to the Illinois Department of Labor in person, by email at DOL.MWOT@Illinois.gov or by mail at 115 S LaSalle St, 37th Floor, Chicago IL 60603**

Additionally:

Your name and address will be revealed to your employer if you are claiming unpaid wages, vacation, bonuses, commissions, or illegal deductions.

- Please be aware that if you complete both Section 1 and Section 2 of the application, this will result in two separate complaints filed and reviewed by different sections of the Fair Labor Standards Division. In this case you will need to provide to the Department two complete copies of all the documentation.
- Claims filed under Section 1 will be reviewed by the Wage Claim Section and claims filed under Section 2 will be reviewed by the Compliance Section. Two separate investigators will be assigned to your claims: a Wage Claim Specialist for Section 1 (Wage Claims), and a Compliance Officer for Section 2 (Minimum Wage and Overtime Claims).

Illinois Department of Labor
115 S. LaSalle St., 37th Floor Chicago IL 60603
Telephone #: (312) 793-2800 http://labor.illinois.gov

Print Form

Office use only
Claim # _____

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UNPAID WAGES CLAIM AND MINIMUM WAGE/OVERTIME CLAIM

For unpaid wages, vacation pay, bonus, commissions or if you believe your employer has made illegal deductions from your pay, proceed to complete both the General Information AND Section 1 of this form only. You can submit the form by email to **DOL.WAGES@illinois.gov**

For unpaid minimum wages ($15.00 in the State of Illinois for hourly and non exempt workers) and unpaid overtime (all time worked over 40 hours in a schedule work week), proceed to complete both General Information AND Section 2 of this form only. You can submit the form by email to **DOL.MWOT@illinois.gov**

GENERAL INFORMATION

CLAIMANT INFORMATION

(Last Name) (First Name) (Middle Name)

(Street Address) (This will be released to the Employer)

(City) (State) (Zip code) (County)

(Primary phone #) (Secondary phone #)

Email Address:
(very important)

I authorize service of documents by E-mail: ☐ Yes ☐ No

EMPLOYER INFORMATION

Business Name

Business Owner(s) name(s)

(Street Address)

(City) (State) (Zip code) (County)

Business Phone:

Who is responsible for issuing pay? (Personnel/HR Manager)

President's Email Address:

1) Date of hire: **2)** Last day worked: **3)** Still working there? ☐ Yes ☐ No

4) Did you perform the work in Illinois? ☐ Yes ☐ No **5)** Did you also perform the work in other states? ☐ Yes ☐ No

6) Did you sign an employment contract or agreement? ☐ Yes Please attach ☐ No Rate of Pay: ☐ Hourly ☐ Biweekly ☐ Other

7) Were you in a union? ☐ Yes Please attach ☐ No Name and Local:

8) Has the company filed for Bankruptcy OR made an Assignment for Benefit for Creditors? ☐ Yes Please attach ☐ No

9) Is the company still open? ☐ Yes ☐ No **10)** Is this a temporary staffing agency? ☐ Yes ☐ No

11) If applicable, name of your attorney or representative: Phone: Email:

12) If applicable, name of person who prepared this form: Phone: Email:

12(a) Can we contact this person in relation to your claim? ☐ Yes ☐ No

Is this claim for: ☐ Regular Time ☐ Overtime ☐ Minimum Wage Violations

FOR TRANSLATORS/INTERPRETERS

13) Do you need an interpreter? ☐ Yes ☐ No If you checked "Yes", enter the language needed:

SECTION 1 : WAGE CLAIM APPLICATION

(DOL.WAGES@ILLINOIS.GOV)

I. UNPAID WAGES ☐

A. How many hours did you work and not get paid? Amount claimed:

B. How much were you paid? Hourly: Bi-weekly: Other:

C. Dates for which you were not paid: From: To:

D. What type of work did you perform?

I am attaching the following supporting documentation: **(DO NOT SEND ORIGINALS)**

☐ Employment Contract/Agreement ☐ Paycheck ☐ Pay stub ☐ W2 Form ☐ 1099 Form ☐ Emails ☐ Letters ☐ Other (Specify)

II. VACATION PAY ☐

A. How much are you owed? _____

B. Are you still employed by this employer? ☐ Yes ☐ No

C. What is the vacation policy? *Attach a copy of the vacation policy.*

I am attaching the following supporting documentation:
(**DO NOT SEND ORIGINALS**)

☐ Vacation Policy ☐ Paycheck ☐ Pay stub ☐ W2 Form
☐ 1099 Form ☐ Employment Contract/Agreement
☐ Emails ☐ Letters ☐ Other (specify)

III. BONUS ☐

A. How much are you owed? _____

B. Are you still employed by this employer? ☐ Yes ☐ No

C. Explain why you believe you are owed a bonus.
What was the policy or agreement? *Attach a copy of the policy.*

I am attaching the following supporting documentation:
(**DO NOT SEND ORIGINALS**)

☐ Bonus Agreement/Policy ☐ Paycheck ☐ Pay stub
☐ W2 Form ☐ 1099 Form ☐ Employment Contract/Agreement
☐ Emails ☐ Letters ☐ Other (specify)

IV. COMMISSION ☐

A. How much are you owed? _____

B. For what period of time? From: _____ To: _____

C. Are you still employed by this employer? ☐ Yes ☐ No

D. Explain why you are owed a commission. *Attach the commission policy.*

I am attaching the following supporting documentation:
(DO NOT SEND ORIGINALS)

☐ Commission Agreement/Policy ☐ Paycheck ☐ Pay stub
☐ W2 Form ☐ 1099 Form ☐ Employment Contract/Agreement
☐ Emails ☐ Letters ☐ Other (specify)

V. ILLEGAL DEDUCTIONS ☐

A. How much was deducted? _____

B. When did the deduction occur? _____

C. Did you agree to this deduction in writing? ☐ Yes ☐ No

D. Explain how much was deducted and why. *Attach copies of evidence.*

I am attaching the following supporting documentation:
(**DO NOT SEND ORIGINALS**)

☐ Paycheck ☐ Pay stub
☐ W2 Form ☐ 1099 Form ☐ Employment Contract/Agreement
☐ Emails ☐ Letters ☐ Other (specify)

VI. OTHER ☐

Explain what you are owed and why? Attach additional sheets if necessary.

I am attaching the following supporting documentation: (**DO NOT SEND ORIGINALS**)

☐ Paycheck ☐ Paystub ☐ W2 Form ☐ 1099 Form ☐ Employment Contract/Agreement ☐ Emails ☐ Letters ☐ Other (specify)

TOTAL AMOUNT CLAIMED UNDER SECTION 1:

(Do not include Total Amount Claimed from Section 2)

SECTION 2: MINIMUM WAGE AND/OR OVERTIME CLAIM APPLICATION

(DOL.MWOT@ILLINOIS.GOV)

Attach copies of supporting documentation such as pay stubs, W2's, 1099's. DO NOT SEND ORIGINALS.

Date of birth: _____ Dates for which you were not paid: From: _____ To: _____

How were you paid? ☐ Salary ☐ Hourly ☐ Other _____

Check if you received: ☐ Meals ☐ Lodging ☐ Tips ☐ Other _____

Total number of employees: _____

Dates of Employment:		**Actual Hours Worked Per Week:**	**Wages per hour:**	**Tips per hour:**
From: _____	To: _____	_____	_____	_____

ONLY For Minimum Wage and Overtime claims: (Does not apply to claims for unpaid wages, deductions, vacation, bonus, commissions.)

☐ I do not want my name revealed to the employer.
(This option does not apply if you are no longer working for the employer named in this complaint.)

Overtime Claims:

Your Title: _____

Were you a professional employee? ☐ Yes ☐ No Did your position require a college degree? ☐ Yes ☐ No

Were you a manager? ☐ Yes ☐ No Did you supervise anyone? ☐ Yes ☐ No

List your primary duties:

TOTAL AMOUNT CLAIMED UNDER SECTION 2 :

Additional Comments:

I HEREBY CERTIFY that the application, including attachments, is true and accurate to the best of my knowledge and belief.
I UNDERSTAND that acceptance of this claim by the Illinois Department of Labor does not guarantee collection.
I AUTHORIZE the Department of Labor to receive any monies and to mail such monies to me at my address on file with the Illinois Department of Labor.

Date: _____ **Claimant's Signature:** _____